

Calendar Line 5**Case Name:** *Edgar Daniel Rios Alvarez et al. v. Target Corporation et al.***Case No.:** 24CV440808

Defendant TARGET CORPORATION brings a motion to compel compliance with its subpoena to MetroPCS, for the production of telephone provider records of plaintiffs Edgar Daniel Rios Alvarez and Karla Bautista (“Plaintiffs”). The motion is brought pursuant to Code of Civil Procedure §§ 1985.3, 1985.6, 1987.1, 2017.010, 2023.010, and 2023.030, and Rules of Court, Rules 3.1345 and 3.1346. Defendant also seeks \$1,748 in monetary sanctions for plaintiffs’ misuse of the discovery process.

On November 17, 2025, Defendant issued a subpoena on MetroPCS seeking:

All historical transaction detail information and stored content phone records, including, but not limited to, records and contents of phone calls and text messages exchanged between Karla Bautista (650-906-5608) and Edgar Rios (650-776-0923) on or about September 10, 2022, including GPS locations.

Plaintiffs objected, asserting relevancy and privacy objections and the marital privilege as reasons to prevent production of the subpoenaed documents. The parties’ attempt to meet and confer resulted in an impasse and this motion. Plaintiffs claim that the meet and confer efforts were cut short, but the Court does not see any effort by Plaintiffs to continue meet and confer efforts after the motion was filed. Such meet and confers are not precluded and if Plaintiffs were indeed open to further attempts to resolve this discovery dispute they should have tried to do so.

Defendant argues that the information sought from MetroPCS – now limited to the date of the incident –September 10, 2022, is relevant and discoverable and that the subpoena should be enforced. In support, Defendant argues that Plaintiffs’ June 10, 2024 Complaint alleges causes of action for general negligence, premises liability, intentional tort, negligent infliction of emotional distress, negligent hiring, retention, and supervision, and loss of consortium and specifically alleges that on September 10, 2022 individuals employed by Defendant instigated a physical altercation with Plaintiff Rios in the presence of Plaintiff Bautista and their children on Defendant’s premises, and that they experienced “physical injuries, emotional distress, medical expenses, and other damages” due to the claimed incident.

Further, Plaintiffs recite that Plaintiff Bautista had recently been told at her deposition to maintain text messages with Plaintiff Rios on that date without any objection from her counsel that it was protected by the right to privacy. Defendant argues that the limitation for only communications between Plaintiffs on September 10, 2022, could reveal motive or explanation for Plaintiff Rios deciding to engage in a physical altercation with three individuals in the presence of his wife and children. Plaintiffs also testified at deposition that Plaintiff Rios was unfaithful in Plaintiffs’ marriage both before and after the alleged incident, and that he filed for divorce from Plaintiff Bautista.

Defendant further argues that Plaintiffs failed to assert privacy objections regarding their communications with each other at their depositions and that Plaintiffs testified on multiple occasions regarding conversations between themselves, and at no point did their

counsel assert objections that such communications were confidential or private. The only time a privacy objection was made during either deposition was for a question to Plaintiff Rios regarding his criminal contacts with local police.

In opposition, Plaintiff argues that Defendant's motion should be denied as the subpoena is overbroad, only targeted communications about the incident should be compelled, the marital privilege was not waived, the subpoena cannot lawfully be enforced based on 18 U.S.C. § 2702 and the meet and confer efforts were cut off by Defendant. Plaintiffs also oppose Defendant's sanctions request as they believe their opposition is substantially justified.

After full consideration the Court finds that that the information sought by Defendant's subpoena is relevant and discoverable because of plaintiffs' claims, their express disclosures in discovery and their waiver of the marital privilege during their depositions. Evidence Code §912 provides, *inter alia*, "...Consent to disclosure is manifested by any statement or other conduct of the holder of the privilege indicating consent to the disclosure, including failure to claim the privilege in any proceeding in which the holder has legal standing and the opportunity to claim the privilege". The Court is not persuaded by Plaintiffs' arguments.

Good cause appearing, Defendant's motion is GRANTED. Plaintiffs' objections to the MetroPCS subpoena are overruled. MetroPCS shall produce the information requested for the time period of September 10, 2022 *only* and shall provide a statement of compliance, verifying that *all* responsive documents have been produced. Both shall be produced within 20 days of the formal order on this motion. However, the Court DENIES the request for GPS locations, without prejudice, as this information does not appear to be relevant or reasonably calculated to lead to the discovery of admissible evidence. Sanctions of \$1,748 are awarded against Plaintiffs and shall be paid to Defendant also within 20 days of the formal order on this motion.

Moving party to prepare the formal order.

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Calendar Line 7

Case Name: *Shabana Pirani v. Comcast Cable Communications, LLC*

Case No.: 25CV477283

I. BACKGROUND

Plaintiff Shabani Pirani (“Plaintiff”) brings this complaint for exemplary damages against Defendant Comcast Cable Communications, LLC (“Defendant” or “Comcast”) (erroneously sued as “Xfinity sub of Comcast Cable Communications, LLC” and “Xfinity Internet subsidiary of Comcast Cable Communications, LLC”).

On September 15, 2025, Plaintiff alleges she contacted Defendant’s customer service department to resolve a billing discrepancy. (Complaint at p. 6.) Plaintiff alleges she “tendered full payment of the amount due, together with an advance payment for the subsequent month.” (*Ibid.*) Plaintiff received confirmation that the account was current. (*Ibid.*) However, Plaintiff alleges Defendant “falsified and overstated the balance due and wrongfully disconnected Plaintiff’s internet service.” (*Ibid.*)

Plaintiff visited a Xfinity store location on September 25, 2025. (Complaint at p. 6.) The store manager “deleted several transactions that had been erroneously reflected on Plaintiff’s account.” (*Ibid.*) However, “by the following morning, additional unauthorized transactions appeared on Plaintiff’s bill.” (*Ibid.*) Plaintiff alleges Defendant refused to correct the falsified balance, credit the deleted items, and debited funds from the wrong bank account without authorization. (*Ibid.*)

Plaintiff visited a different Xfinity store location on September 26, 2025. (Complaint at p. 7.) The store manager there “refused to acknowledge prior payments, declined to accept the corrections suggested by the billing department,” and “continued to authorize and process unauthorized debits from the same bank account.” (*Ibid.*) Plaintiff alleges Defendant made false and derogatory statements to other employees and customers insinuating that Plaintiff was dishonest and was attempting to evade payment. (*Ibid.*)

Plaintiff filed suit on October 14, 2025. Plaintiff filed a First Amended Complaint (“FAC”) on October 27, 2025. Therein, Plaintiff alleges two intentional torts seemingly for unfair business practices and defamation and seeks exemplary damages.